

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-10

**REVOCATION OF OCEAN TRANSPORTATION INTERMEDIARY LICENSE
NO. 017843 – WASHINGTON MOVERS, INC.**

**OPPOSITION TO RESPONDENT'S MOTION FOR LEAVE TO RESPOND
TO THE BUREAU OF ENFORCEMENT'S
MOTION FOR A DETERMINATION OF THE INSUFFICIENCY OF
REQUEST FOR ADMISSION RESPONSES AND TO COMPEL
RESPONSE TO INTERROGATORIES AND REQUESTS FOR PRODUCTION
DIRECTED TO WASHINGTON MOVERS, INC.**

Pursuant to Rule 102 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102, the Bureau of Enforcement (BOE) files this opposition to the motion filed on July 14, 2016, by Washington Movers, Inc. (Washington Movers or Respondent) for leave to late file its reply to BOE's motion filed June 13, 2016. BOE's motion sought a determination as to the insufficiency of answers given by Respondent in response to BOE's First Requests For Admissions (RFA), and an order compelling Respondent to respond to the discovery demands contained in BOE's First Interrogatories and Requests for Production of Documents (IRP) (hereinafter "Motion For Determination"). For the reasons set forth herein, BOE submits that the late filed document should be rejected.

RELEVANT BACKGROUND

1. On March 25, 2016, the Administrative Law Judge (ALJ) served a Discovery Schedule setting June 30, 2016 as the end of the discovery period.
2. On April 13, 2016, BOE served discovery requests on Respondent. On May 13, 2016, Respondent provided responses to BOE's discover requests that were either incomplete, indefinite, or both. (Exhibits 20, 21, and 22).
3. Between May 13, 2016 and June 6, 2016, BOE conferred with Respondent's counsel regarding the deficiencies of the responses on several occasions and, on May 26, 2016, BOE provided Respondent's counsel with a list of specific deficiencies via email which are the subject of BOE's Motion For Determination.
4. On May 27, 2016, Respondent's counsel acknowledged receipt of the list and proposed the date of June 6, 2016 for producing additional documents to which BOE agreed.
5. On June 6, 2016, counsel again conferred via telephone on this issue, but were unable to reach resolution.
6. On June 13, 2016, BOE filed its Motion For Determination.
7. On June 23, 2016, BOE received from counsel "Respondent's Supplemental Production of Documents" consisting of copies of 5 documents without any explanation.
8. On June 30, 2016, BOE received a copy of an email from the Office of Administrative Law Judges (OALJ) inquiring, *sua sponte*, whether Respondent intended to respond to BOE's Motion For Determination.
9. On the same day, BOE received a copy of an email from Respondent's counsel to the OALJ informally requesting permission to file a response to BOE's Motion For Determination by July 8, 2016. BOE subsequently received a copy of an email from the Commission's Office of the

Secretary to Respondent's counsel advising that his request must be submitted in the form of a motion and reminding counsel of the duty to confer.

10. On July 7, 2016, BOE received a telephone call from counsel to discuss outstanding discovery and request consent to file a response to BOE's Motion For Determination by Monday, July 11. BOE did not give its consent and advised counsel of the same reasons set forth below.

ARGUMENT

BOE's Motion For Determination was filed and served June 13, 2016. A response was due on or before June 20, 2016. 46 C.F.R. §502.71(b) and/or §502.210(a)(3). Respondent's proposed response was filed July 14, 2016 – 24 days late and 31 days after the document was filed to which it seeks authority to respond. Rule 102(b) of the Commission's Rules of Practice, 46 C.F.R. §502.102(b), provides that motions filed after the due date will be considered a request to accept late filing and warns that such motions "will only be considered when exceptional circumstances are shown or as justice may require."

Counsel's request to accept its late filed document fails to show any exceptional circumstances or provide any facts on which the ALJ could determine that justice may require acceptance of the filing. Counsel simply asks for leave to respond without providing any basis for its untimely request. In fact, counsel expressed no indication to BOE of any intent to respond until the inquiry of the OALJ, which event occurred well after the due date for a response. The requirements of the rule are explicit: late filed documents will only be considered in exceptional or unique circumstances. Respondent's filing flouts the Commission's rules and should be summarily rejected.

BOE will not attempt to respond to each contention in Respondent's proposed reply, as only the motion for leave is presently before the presiding officer. Nonetheless, it is sufficient to observe that Respondent's efforts continue its path of evasiveness and obfuscation. For example, in paragraph II.A., Respondent states that each of BOE's RFP 1, 3, 4, 5, and 6, "seeks tax documents" and asserts that it has now produced its federal and state 2014 corporate tax returns. In fact, BOE's request was for signed tax returns and the 2014 federal return has not been provided.

Similarly, in paragraph III.A. at p.5, Respondent incorrectly asserts that Interrogatories 1-6 and 11, "essentially ask if Sam Ghanem, or any of his companies" own a part of Washington Movers. In fact, those interrogatories say nothing of the sort, but rather seek the identity of "every person" (1 and 2); "every individual" (3); "every company" (4, 5, 6); and "any entity"(11).

In trying to explain its responses to BOE's Requests For Admission (RFAs), Respondent claims at p. 2 that the RFAs, "to a large extent, were directed at Sam Ghanem's criminal proceedings." Reference to the actual RFAs reveals that counsel's description is, "to a large extent", inaccurate. BOE's RFAs seek acknowledgment as to facts reflecting Sam Ghanem's continued involvement in Respondent's affairs during the time period that Respondent represented to the Commission that he was no longer acting on behalf of the company. This is information within the knowledge and control of Respondent. If not admitted outright, the denial must fairly respond to the substance of the matter including, where necessary, exercising an obligation to make reasonable inquiry thereon. 46 CFR 502.207(a)(4).

These examples of Respondent's non-responsive responses serve to illustrate why the document should not be accepted for filing. BOE respectfully requests that its Motion For Determination be granted and that an appropriate Order be issued.

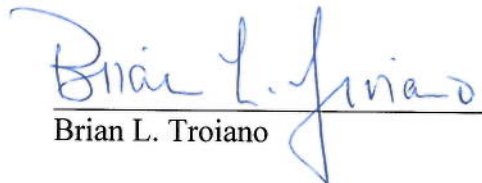
Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing Bureau of Enforcement's Opposition To Respondent's Motion For Leave To Respond To The Bureau Of Enforcement's Motion For A Determination Of The Insufficiency Of Request For Admission Responses And To Compel Response To Interrogatories And Requests For Production Directed To Washington Movers, Inc. was served upon counsel for Respondent identified below by email transmission and also by first class mail with postage prepaid this 19th day of July, 2016.


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